

		2. Paragraph 64 (Page 20, Prayer for Relief): The phrase "For punitive damages for breach of contract in the amount of \$26,250.00." 3. Paragraph 67 (Page 20, Prayer for Relief): The phrase "For punitive damages in an amount to be determined at trial." Code of Civil Procedure section 436 provides, "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." "No claim for exemplary damages shall state an amount or amounts." (Code Civ. Proc. § 3295(e).) Moreover, Defendant has failed to allege facts or state a claim that supports an award of punitive damages. The motion is unopposed. The court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Accordingly, the motion is GRANTED Thus, Defendant has 30 days leave to file First Amended Cross-Complaint. The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12. Clerk to give notice of this ruling.
10.	Kossoff vs. Hepner 23-01308009	Motion for Summary Judgment and/or Adjudication Defendant David D. Dearing, M.D.'s (Doe 1) Motion for Summary Judgment is GRANTED. Dr. Dearing has met his initial burden to show the plaintiffs' sole cause of action for wrongful death based on medical negligence has no merit. (See Code Civ. Proc., § 437c, subs. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [burden]; <i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1263 [elements of a claim for wrongful death include, inter alia, the underlying tort]; <i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305 [elements of medical negligence, standard of care]; <i>Chakalis</i>

	<i>v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1572 [causation]; see also Waxman Decl. ¶¶ 1-20.) Plaintiffs have not opposed this motion and have therefore failed to meet their shifted burden to demonstrate a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden].) Defendant to file and serve a Proposed Judgment by July 24, 2026. The Court now sets an OSC re: Compliance with Court Order (Proposed Judgment) for September 17, 2026, at 9:30 a.m. in Department C12. If the Judgment is submitted and approved timely, the hearing will be vacated, and no appearance will be necessary. Moving Party Defendant shall give notice.
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